

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
CHARLEMAGNE DUMAY,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT,
POLICE OFFICER LUIS BENZAT, TAX ID # 948657,
POLICE OFFICER LILYANNE THOMAS, TAX ID # 341773,
POLICE OFFICER JAZZLYN FARRELL, TAX ID # 962394,
DETECTIVE ROUMER of the 105th Precinct, POLICE
OFFICER JOHN DOE, and POLICE OFFICER JOHN ROE,

Defendants.
-----X

Index No.:
Date Filed:

SUMMONS

Plaintiff designates
Queens County as the
place of trial.

The basis of venue is
CPLR § 504(3).

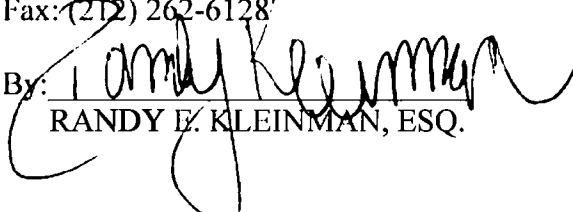
Plaintiff Resides at
179-12 146th Road
Jamaica, New York 11434

YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiff's attorney within 20 days after the service of the Summons, exclusive of the day of service, or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York; and in the event of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York
March 9, 2018

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

Attorneys for Plaintiff
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New York, New York 10107
Tel: (212) 307-5800
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By: 

RANDY E. KLEINMAN, ESQ.

TO: ZACHARY W. CARTER, ESQ.
Corporation Counsel of City Of New York
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
New York, NY 10038

POLICE OFFICER LUIS BENZAT, TAX ID # 948657
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER LILYANNE THOMAS, TAX ID # 341773
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JAZZLYN FARRELL, TAX ID # 962394
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER DETECTIVE ROUMER of the 105th Precinct
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN DOE
New York City Police Department
1 Police Plaza
New York, NY 10038

POLICE OFFICER JOHN ROE
New York City Police Department
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
CHARLEMAGNE DUMAY,

Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

CITY OF NEW YORK, NEW YORK POLICE DEPARTMENT,
POLICE OFFICER LUIS BENZAT, TAX ID # 948657,
POLICE OFFICER LILYANNE THOMAS, TAX ID # 341773,
POLICE OFFICER JAZZLYN FARRELL, TAX ID # 962394,
DETECTIVE ROUMER of the 105th Precinct, POLICE
OFFICER JOHN DOE, and POLICE OFFICER JOHN ROE,

Defendants.

-----X

Plaintiff, **CHARLEMAGNE DUMAY**, by his attorneys, **FRIEDMAN, LEVY,
GOLDFARB & GREEN, P.C.**, complaining of the defendants, respectfully shows to this Court
and alleges the following, upon information and belief:

1. That at all times the Plaintiff **CHARLEMAGNE DUMAY** was and is a resident of County of Queens, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as "CITY", was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as "NYPD", was and is an agency of the defendant, CITY.
4. That at all times hereinafter mentioned, the defendant, POLICE OFFICER LUIS BENZAT, TAX ID # 948657, hereinafter referred to as "BENZAT", was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.
5. That at all times hereinafter mentioned, the defendant, POLICE OFFICER LILYANNE

THOMAS, TAX ID # 341773, hereinafter referred to as “THOMAS”, was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That at all times hereinafter mentioned, the defendant, POLICE OFFICER JAZZLYN FARRELL, TAX ID # 962394, hereinafter referred to as “FARRELL”, was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That at all times hereinafter mentioned, the defendant, DETECTIVE ROUMER of the 105th Precinct, hereinafter referred to as “ROUMER”, was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. That at all times hereinafter mentioned, the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as “DOE”, was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

9. That at all times hereinafter mentioned, the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE”, was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

10. Upon information and belief, that at all times hereinafter mentioned, several police officers including, but not limited to, BENZAT, THOMAS, FARRELL, ROUMER, DOE and ROE were on duty and in the vicinity of the 105th Precinct, located at 92-08 222nd Street, Queens Village, County of Queens, New York 11428.

11. Upon information and belief, that at all times hereinafter mentioned, the above-referenced

Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD, as its agents, servants and/or employees.

12. Upon information and belief, defendants BENZAT, THOMAS, FARRELL, ROUMER, DOE and ROE were all assigned to the 105th Precinct.

13. That on and prior to all dates and times hereinafter mentioned, BENZAT, THOMAS, FARRELL, ROUMER, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

14. That at all times hereinafter mentioned, BENZAT, THOMAS, FARRELL, ROUMER, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

15. That at all times hereinafter mentioned, Plaintiff **CHARLEMAGNE DUMAY** was lawfully in the vicinity of the 105th Precinct, located at 92-08 222nd Street, Queens Village, County of Queens, New York 11428, and doing nothing illegal, unlawful or improper, or acting suspiciously in any way.

16. That at all times hereinafter mentioned, in the vicinity of the 105th Precinct, located at 92-08 222nd Street, Queens Village, County of Queens, New York 11428, BENZAT, THOMAS, FARRELL, ROUMER, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification whatsoever, approached Plaintiff **CHARLEMAGNE DUMAY** for no reason and based solely on fraud, perjury and misrepresentations, and summarily stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

17. Upon information and belief, BENZAT, THOMAS, FARRELL, ROUMER, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **CHARLEMAGNE DUMAY** and said actions were based on fraud, perjury and misrepresentations.

18. That at all times hereinafter mentioned, Plaintiff **CHARLEMAGNE DUMAY** remained incarcerated for periods of detainment exceeding 24-hours.

19. Thereafter, at all times hereinafter mentioned, Plaintiff **CHARLEMAGNE DUMAY** was arraigned and subsequently falsely and maliciously prosecuted, without having committed any crime, and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

20. Plaintiff **CHARLEMAGNE DUMAY** sustained physical and emotional pain and injuries as a result of these incidents.

21. On July 7, 2017 and December 13, 2017, respectively, and within ninety (90) days after the claims herein arose, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **CHARLEMAGNE DUMAY** caused the Notices of Claim, setting forth in writing and sworn to by and on behalf of the claimant, the Plaintiff herein, containing a statement of claimant's name and place of residence, by the street and number, listing his attorney, and describing the time, place, nature and circumstances in which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries, to be personally served upon the defendant CITY, their agents, servants and/or employees at the New York City Law Department.

22. This action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claims is based.

23. For more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although Plaintiff herein has requested and demanded that the same be paid and adjusted.

24. That the defendants requested oral examinations pursuant to General Municipal Law

Section 50-h and that said requests were complied with on October 26, 2017 and February 27, 2018, respectively.

FIRST INCIDENT: APRIL 21, 2017

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY**

25. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “24” with the same force and effect as if fully set forth at length herein.

26. That on or about April 21, 2017, at approximately 4:30 p.m., the Plaintiff **CHARLEMAGNE DUMAY** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, their agents, servants and/or employees, and in particular, by BENZAT, THOMAS, FARRELL, DOE and ROE.

27. That on or about April 21, 2017, at approximately 4:30 p.m., the Plaintiff **CHARLEMAGNE DUMAY** while lawfully in the vicinity of the 105th Precinct, located at 92-08 222nd Street, or a “satellite office” of the 105th Precinct, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE of having committed a crime.

28. That on or about April 21, 2017, and upon arresting the Plaintiff **CHARLEMAGNE DUMAY** and depriving him of his liberty, CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE transported the Plaintiff **CHARLEMAGNE DUMAY** to the 105th Precinct, or to a “satellite office” of the 105th Precinct, in the County of Queens and entered him on the records as under arrest.

29. That on or about April 21, 2017, the CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE further caused Plaintiff **CHARLEMAGNE DUMAY** to be fingerprinted and photographed without his consent, and in accordance with police procedures for the arrest of criminals, and held him on various criminal charges at various police stations, correctional facilities and the Courthouse located in the County of Queens and State of New York.

30. That on or about April 21, 2017, Plaintiff **CHARLEMAGNE DUMAY** was aware of his arrest and confinement and did not consent to his arrest and confinement; and that said arrest, confinement, seizure and detainment was without legal justification.

31. That at all times hereinafter mentioned, the actions of CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

32. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY**

33. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "32" with the same force and effect as if fully set forth at length herein.

34. That on or about April 21, 2017, a criminal complaint was issued by the CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification, and that said complaint was filed based on fraud, perjury and misrepresentations.

35. That on or about April 21, 2017, a criminal action against Plaintiff **CHARLEMAGNE DUMAY** was commenced by CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE,

their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

36. That solely as a result of the aforementioned actions and conduct, the Plaintiff **CHARLEMAGNE DUMAY'S** life was interfered with.

37. That the criminal action commenced against Plaintiff **CHARLEMAGNE DUMAY** was continued for an extended period of time by defendants with malice and bad faith.

38. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **CHARLEMAGNE DUMAY**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule and embarrassment, and was degraded in the esteem of the community, both personally and professionally.

39. That the criminal action against Plaintiff **CHARLEMAGNE DUMAY** was terminated favorably on October 30, 2017.

40. That the actions of CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

41. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY**

42. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "41" with the same force and effect as if fully set forth at length herein.

43. That on or about April 21, 2017, and while in the custody of the defendants in the County of Queens, City and State New York, the Plaintiff **CHARLEMAGNE DUMAY** was intentionally

touched, pushed, assaulted, battered, violated, humiliated, photographed and handcuffed by the CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to Plaintiff.

44. That on or about April 21, 2017, CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, and within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **CHARLEMAGNE DUMAY**, insofar as they have the real and/or apparent ability to cause imminent harmful and/or offensive bodily contact, and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **CHARLEMAGNE DUMAY**, and their act caused an apprehension of such contact in the Plaintiff, and in a hostile and/or offensive manner touched and beat the Plaintiff and/or caused offensive bodily contact to the Plaintiff **CHARLEMAGNE DUMAY**, and caused such battery on and about his head, neck, back, body and limbs.

45. That by reason of the aforesaid intentional assault and battery, which was committed in an excessive manner, with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority, and without any probable or reasonable cause, Plaintiff **CHARLEMAGNE DUMAY** suffered severe and permanent bodily injury on and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

46. That as a result of the aforesaid assault and battery, the Plaintiff **CHARLEMAGNE DUMAY** was caused to sustain serious, severe, painful and permanent bodily injuries, so that he was rendered sick, sore, lame and disabled and so remains, and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of said

injuries, and he was and will be prevented from attending his usual occupation and duties.

47. That at all times hereinafter mentioned, the actions of CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

48. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

49. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "48" with the same force and effect as if fully set forth at length herein.

50. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including, but not limited to, BENZAT, THOMAS, FARRELL, DOE and ROE, insofar as the foregoing police officers, as employees of CITY and NYPD, were not qualified to be hired, retained or promoted as police officers, and lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each were and are employed by CITY and NYPD.

51. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and NYPD failed to adequately test, analyze test results and/or investigate the above-referenced police officers' backgrounds and performances.

52. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and NYPD failed to adequately screen the above-referenced police officers, failed to adequately monitor said police officers and failed to

adequately discipline said police officers when they violated Patrol Guidelines.

53. Defendant CITY and NYPD were also negligent in that prior to, and at the time of, the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or, at the very least, had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, nor use excessive force during the arrest process.

54. That by reason of the above, the Plaintiff **CHARLEMAGNE DUMAY** was injured in mind and body as he was arrested and prosecuted, and rendered sick, sore and damaged.

55. That at all times hereinafter mentioned, the actions of CITY, NYPD and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

56. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

57. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "56" with the same force and effect as if fully set forth at length herein.

58. In arresting Plaintiff **CHARLEMAGNE DUMAY**, police officers including, but not limited to, THOMASs, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior motive to do harm, without justification or

economic or social excuse.

59. In arresting Plaintiff **CHARLEMAGNE DUMAY**, police officers including, but not limited, to BENZAT, THOMAS, FARRELL, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **CHARLEMAGNE DUMAY** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

60. As a result of the abuse of process by defendants herein, Plaintiff **CHARLEMAGNE DUMAY** sustained multiple injuries including, but not limited to, loss of liberty, emotional distress, humiliation, intimidation, loss of enjoyment of life, and fear for his safety.

61. That at all times hereinafter mentioned, the actions of CITY, NYPD and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

62. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

63. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "62" with the same force and effect as if fully set forth at length herein.

64. At all times mentioned herein and above, defendants CITY and NYPD employed BENZAT, THOMAS, FARRELL, DOE and ROE as police officers and the named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

65. Plaintiff **CHARLEMAGNE DUMAY** is and was at all times relevant herein, a citizen of

the United States and a resident of Queens County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

66. That on or about April 21, 2017, defendants CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE without probable cause, reasonable cause or legal justification, and while effectuating the seizure of Plaintiff **CHARLEMAGNE DUMAY**, did search, seize, assault and commit a battery and grab the Plaintiff **CHARLEMAGNE DUMAY** without a court authorized arrest warrant or search warrant, and defendants did physically seize Plaintiff **CHARLEMAGNE DUMAY** during the arrest process in an unlawful and excessive manner Plaintiff **CHARLEMAGNE DUMAY** was falsely arrested and unlawfully imprisoned, and, as a result of defendants' conduct, maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

67. The above actions of defendants CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE resulted in Plaintiff **CHARLEMAGNE DUMAY** being deprived of the following rights under the United States Constitution: (a) Freedom from assault to his person; (b) Freedom from battery to his person; (c) Freedom from illegal search and seizure; (d) Freedom from false arrest; (e) Freedom from malicious prosecution; (f) Freedom from the use of excessive force during the arrest process; and (g) The right to Due Process of Law.

68. In addition to the above, defendants CITY and NYPD have, as a matter of policy, custom and practice, and with deliberate indifference, failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case, and any and all unnamed officers involved in the unlawful seizure and arrest of Plaintiff, regarding the protection of the constitutional rights of citizens.

69. Defendants CITY, NYPD, BENZAT, THOMAS, FARRELL, DOE and ROE subjected

Plaintiff **CHARLEMAGNE DUMAY** to such deprivation in a malicious, reckless, deliberate, intentional and grossly negligent manner and with a callous disregard of Plaintiff **CHARLEMAGNE DUMAY'S** rights, and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

70. The direct and proximate result of the defendants CITY's, NYPD's, THOMAS's, DOE's and ROE's conduct are that Plaintiff **CHARLEMAGNE DUMAY** has suffered severe and permanent injuries and a loss of liberty and companionship, and has been forced to endure pain and suffering, emotional distress and severe and significant damage to his standing and reputation in the community.

71. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

SECOND INCIDENT: OCTOBER 15, 2017

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY**

72. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "71" with the same force and effect as if fully set forth at length herein.

73. That on or about October 15, 2017, at approximately 9:00 a.m., the Plaintiff **CHARLEMAGNE DUMAY** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, ROUMER, DOE and ROE, their agents, servants and/or employees, and in particular, by ROUMER, DOE and ROE.

74. That on or about October 15, 2017, at approximately 9:00 a.m., the Plaintiff **CHARLEMAGNE DUMAY** while lawfully in the vicinity of the 105th Precinct, located at 92-08 222nd Street, Queens Village, County of Queens, New York 11428, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, ROUMER, DOE and ROE of having committed a crime.

75. That on or about October 15, 2017, and upon arresting the Plaintiff **CHARLEMAGNE DUMAY** and depriving him of his liberty, CITY, NYPD, ROUMER, DOE and ROE transported the Plaintiff **CHARLEMAGNE DUMAY** to the 105th Precinct in the County of Queens and entered him on the records as under arrest.

76. That on or about October 15, 2017, the CITY, NYPD, ROUMER, DOE and ROE further caused Plaintiff **CHARLEMAGNE DUMAY** to be fingerprinted and photographed without his consent, and in accordance with police procedures for the arrest of criminals, and held him on various criminal charges at various police stations, correctional facilities and the Courthouse located in the County of Queens and State of New York.

77. That on or about October 15, 2017, Plaintiff **CHARLEMAGNE DUMAY** was aware of his arrest and confinement and did not consent to his arrest and confinement; and that said arrest, confinement, seizure and detainment was without legal justification.

78. That at all times hereinafter mentioned, the actions of CITY, NYPD, ROUMER, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

79. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR AN EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

80. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “79” with the same force and effect as if fully set forth at length herein.

81. That on or about October 15, 2017, a criminal complaint was issued by the CITY, NYPD, ROUMER, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification, and that said complaint was filed based on fraud, perjury and misrepresentations.

82. That on or about October 15, 2017, a criminal action against Plaintiff **CHARLEMAGNE DUMAY** was commenced by CITY, NYPD, ROUMER, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

83. That solely as a result of the aforementioned actions and conduct, the Plaintiff **CHARLEMAGNE DUMAY’S** life was interfered with.

84. That the criminal action commenced against Plaintiff **CHARLEMAGNE DUMAY** was continued for an extended period of time by defendants with malice and bad faith.

85. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **CHARLEMAGNE DUMAY**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule and embarrassment, and was degraded in the esteem of the community, both personally and professionally.

86. That the criminal action against Plaintiff **CHARLEMAGNE DUMAY** was terminated favorably on January 31, 2018.

87. That the actions of CITY, NYPD, ROUMER, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

88. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

89. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “88” with the same force and effect as if fully set forth at length herein.

90. That on or about October 15, 2017, and while in the custody of the defendants in the County of Queens, City and State New York, the Plaintiff **CHARLEMAGNE DUMAY** was intentionally touched, pushed, assaulted, battered, violated, humiliated, photographed and handcuffed by the CITY, NYPD, ROUMER, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to Plaintiff.

91. That on or about October 15, 2017, CITY, NYPD, ROUMER, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, ROUMER, DOE and ROE, and within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **CHARLEMAGNE DUMAY**, insofar as they have the real and/or apparent ability to cause imminent harmful and/or offensive bodily contact, and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **CHARLEMAGNE DUMAY**, and their act caused an apprehension of such contact in the Plaintiff, and in a hostile and/or offensive manner touched and beat the Plaintiff and/or caused offensive bodily contact to the Plaintiff **CHARLEMAGNE DUMAY**, and caused such battery on and about his head, neck, back, body and limbs.

92. That by reason of the aforesaid intentional assault and battery, which was committed in an excessive manner, with excessive force and without legal justification or privilege by the

defendants, their agents, servants and employees, who were acting within the scope of their employment and authority, and without any probable or reasonable cause, Plaintiff **CHARLEMAGNE DUMAY** suffered severe and permanent bodily injury on and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

93. That as a result of the aforesaid assault and battery, the Plaintiff **CHARLEMAGNE DUMAY** was caused to sustain serious, severe, painful and permanent bodily injuries, so that he was rendered sick, sore, lame and disabled and so remains, and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of said injuries, and he was and will be prevented from attending his usual occupation and duties.

94. That at all times hereinafter mentioned, the actions of CITY, NYPD, ROUMER, DOE and ROE, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

95. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

96. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "95" with the same force and effect as if fully set forth at length herein.

97. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including, but not limited to, ROUMER, DOE and ROE, insofar as the foregoing police officers, as employees of CITY and NYPD, were not qualified to be hired, retained or promoted

as police officers, and lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each were and are employed by CITY and NYPD.

98. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and NYPD failed to adequately test, analyze test results and/or investigate the above-referenced police officers' backgrounds and performances.

99. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices insofar as CITY and NYPD failed to adequately screen the above-referenced police officers, failed to adequately monitor said police officers and failed to adequately discipline said police officers when they violated Patrol Guidelines.

100. Defendant CITY and NYPD were also negligent in that prior to, and at the time of, the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or, at the very least, had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD, and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, nor use excessive force during the arrest process.

101. That by reason of the above, the Plaintiff **CHARLEMAGNE DUMAY** was injured in mind and body as he was arrested and prosecuted, and rendered sick, sore and damaged.

102. That at all times hereinafter mentioned, the actions of CITY, NYPD and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

103. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR AN ELEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

104. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “103” with the same force and effect as if fully set forth at length herein.

105. In arresting Plaintiff **CHARLEMAGNE DUMAY**, police officers including, but not limited to, ROUMERs, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior motive to do harm, without justification or economic or social excuse.

106. In arresting Plaintiff **CHARLEMAGNE DUMAY**, police officers including, but not limited, to ROUMER, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **CHARLEMAGNE DUMAY** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

107. As a result of the abuse of process by defendants herein, Plaintiff **CHARLEMAGNE DUMAY** sustained multiple injuries including, but not limited to, loss of liberty, emotional distress, humiliation, intimidation, loss of enjoyment of life, and fear for his safety.

108. That at all times hereinafter mentioned, the actions of CITY, NYPD and all defendants herein, as described above, were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

109. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TWELTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHARLEMAGNE DUMAY

110. Plaintiff **CHARLEMAGNE DUMAY** repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “109” with the same force and effect as if fully set forth at length herein.

111. At all times mentioned herein and above, defendants CITY and NYPD employed ROUMER, DOE and ROE as police officers and the named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

112. Plaintiff **CHARLEMAGNE DUMAY** is and was at all times relevant herein, a citizen of the United States and a resident of Queens County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

113. That on or about October 15, 2017, defendants CITY, NYPD, ROUMER, DOE and ROE without probable cause, reasonable cause or legal justification, and while effectuating the seizure of Plaintiff **CHARLEMAGNE DUMAY**, did search, seize, assault and commit a battery and grab the Plaintiff **CHARLEMAGNE DUMAY** without a court authorized arrest warrant or search warrant, and defendants did physically seize Plaintiff **CHARLEMAGNE DUMAY** during the arrest process in an unlawful and excessive manner Plaintiff **CHARLEMAGNE DUMAY** was falsely arrested and unlawfully imprisoned, and, as a result of defendants’ conduct, maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

114. The above actions of defendants CITY, NYPD, ROUMER, DOE and ROE resulted in Plaintiff **CHARLEMAGNE DUMAY** being deprived of the following rights under the United

States Constitution: (a) Freedom from assault to his person; (b) Freedom from battery to his person; (c) Freedom from illegal search and seizure; (d) Freedom from false arrest; (e) Freedom from malicious prosecution; (f) Freedom from the use of excessive force during the arrest process; and (g) The right to Due Process of Law.

115. In addition to the above, defendants CITY and NYPD have, as a matter of policy, custom and practice, and with deliberate indifference, failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case, and any and all unnamed officers involved in the unlawful seizure and arrest of Plaintiff, regarding the protection of the constitutional rights of citizens.

116. Defendants CITY, NYPD, ROUMER, DOE and ROE subjected Plaintiff **CHARLEMAGNE DUMAY** to such deprivation in a malicious, reckless, deliberate, intentional and grossly negligent manner and with a callous disregard of Plaintiff **CHARLEMAGNE DUMAY'S** rights, and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

117. The direct and proximate result of the defendants CITY's, NYPD's, ROUMER's, DOE's and ROE's conduct are that Plaintiff **CHARLEMAGNE DUMAY** has suffered severe and permanent injuries and a loss of liberty and companionship, and has been forced to endure pain and suffering, emotional distress and severe and significant damage to his standing and reputation in the community.

118. That by reason of the foregoing, Plaintiff **CHARLEMAGNE DUMAY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **CHARLEMAGNE DUMAY** demands judgment against the defendants on the First Cause of Action through the Twelfth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all

together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York
March 9, 2018

FRIEDMAN, LEVY, GOLDFARB & GREEN, P.C.

Attorneys for Plaintiff

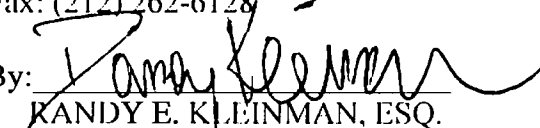
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By:


RANDY E. KLEINMAN, ESQ.

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

Charlemagne Dumay being duly sworn deposes and says:

That deponent is the plaintiff in the annexed complaint and has read the foregoing Complaint and knows the contents thereof, that the same is true to his/her knowledge, except as to those matters stated to be alleged upon information and belief, and to those matters he/she believes to be true.

x Charlemagne Dumay

Sworn to before me this 9th
day of March, 2018

[Signature]
NOTARY PUBLIC

CATHERINE CARDOZO
Notary Public, State of New York
No. 010
Qualified in Queens County
Commission Expires August 25, 2019